



SNAP Claims and Issuances

Policy 24.22

Effective: August 15, 2019

Introduction

The Tennessee Department of Human Services shall follow departmental guidelines regarding Supplemental Nutrition Assistance Payment allotments for retroactive periods of eligibility, over issuances, and filing claims for over issuances.

Scope

This policy outlines departmental procedures governing the authorization of Supplemental Nutrition Assistance Payment allotments, for any retroactive period of eligibility and for ongoing certification period. Additionally, this policy also covers how to treat over issuances and when to file a claim as a result of an over issuance. Filing a claim entails field staff submitting the information to the Office of Inspector General for review and action, if appropriate.

Policy

A. Method of Delivery

1. Supplemental Nutrition Assistance Payment (SNAP) benefits are authorized by Automated Client Certification and Eligibility Network (ACCENT) and mailed to the address the client or authorized representative (Auth Rep) has provided.
2. Benefits can be mailed to the recipient's home, the county office, or a separate mailing address designated by the household (HH). Certain guidelines must be followed in determining where benefits should be mailed:
 - a. Staff shall refer to [Documenting Addresses in ACCENT and Returned Mail in ACCENT](#) for instructions that detail what steps must be taken when documenting an address in ACCENT for clients that choose the county office as their mailing address.
 - b. Electronic Benefit Transfer (EBT) cards or Personal Identification Number (PIN) information will not be issued to TDHS staff members unless the staff member is certified to participate in SNAP in his or her own right (refer to [Policy 24.01 SNAP General](#)

[Administrative Procedures](#) under Section F “Applications by Department Employees, their Relatives, or Other Individuals Who Are Known to the Employee”).

- c. EBT cards or PIN information will not be sent or delivered to “General Delivery” or “in care of” an address other than the household’s residence, unless specifically requested by the HH to do so.
- d. The case will be documented to reflect the reason(s) for not mailing EBT cards or PIN information to the HH’s physical address.
- e. EBT cards or PIN information will not be issued “in care of” a particular merchant or business establishment.
- f. Chapter 41 Continued Responsibilities in the [SNAP Policy Manual](#) goes over the policies that apply when the client has an address change, lost benefits, or case closure. This information may apply when the post office returns EBT cards or PIN information to the county office.

B. Designation of a Head of Household and Authorized Representative

1. The eligibility counselor must designate the person in whose name the SNAP benefits will be issued. This individual will be the person designated as head of the HH. Staff shall refer to [Policy 24.04 SNAP Household Composition](#) on designating a head of HH.
2. The A/R may name an Auth Rep to apply, receive, and/or use benefits on behalf of the head of HH. Staff shall refer to [Policy 24.05 SNAP Authorized Representatives](#) to identify who may qualify as an Auth Rep and designating an Auth Rep.

c. Establishing Claims against Households

1. The Tennessee Department of Human Services (TDHS) shall establish a claim against any HH that has received more SNAP benefits than it is entitled to receive, except in circumstances mentioned in section D of this policy when claims should not be established. Claims shall be classified as follows:
 - a. Inadvertent Household Error Claims

A claim shall be handled as an inadvertent HH error if the over issuance was caused by a misunderstanding or unintended error on the part of the HH. Instances of inadvertent HH error, which may result in claims, include but are not limited to, the following:

 - i. The HH unintentionally failed to provide TDHS with correct or complete information; or
 - ii. The HH unintentionally failed to report to TDHS changes in its HH circumstances and the recipient or responsible person states that he/she did not understand his/her responsibility to provide full information or to report changes in circumstances or he/she did not understand the eligibility requirements and the record does not show that all of these considerations were explained; or
 - iii. The HH received benefits, or more benefits, than it was entitled to receive pending a fair hearing decision, because the HH requested a continuation of benefits based on the belief that it was entitled to such benefits.

b. Administrative Error Claims

A claim shall be handled as an administrative error if the over issuance was caused by TDHS. Instances of administrative error which may result in a claim include, but are not limited to, the following:

- i. TDHS failed to take prompt action on a change reported by the HH.
- ii. TDHS incorrectly computed the HH's income and/or deductions or otherwise assigned an incorrect allotment.
- iii. TDHS incorrectly issued duplicate allotments to the HH.
- iv. TDHS continued to provide a HH SNAP allotment after its certification period had expired, without benefit of a recertification.

c. Intentional Program Violation (IPV)

An IPV shall consist of having intentionally:

- i. Made a false or misleading statement, or misrepresented, concealed or withheld facts; or
 - ii. Committed any act that constitutes a violation of the SNAP Act, the SNAP Regulations, or any State statute for the purpose of using, presenting, transferring, acquiring, receiving, possessing or trafficking of benefits, or electronic benefit cards or devices that deliver benefits.
2. A claim shall be handled as an IPV claim only if:
- a. An administrative disqualification hearing (ADH) official or a court of appropriate jurisdiction has determined that a HH member committed an IPV as defined below under "Intentional Program Violations"; or
 - b. The HH member is disqualified as a result of signing [HS-32475 Waiver of Administrative Disqualification Hearing](#); or.
 - c. The HH member signed [HS-3245 Disqualification Consent Agreement](#).

D. Instances When Claims shall not be established

- 1. A claim shall not be established against any HH if an over issuance occurred as a result of procedural errors and the county office failed to ensure that a HH fulfilled the following procedural requirements:
 - a. Signed an application; or
 - b. Completed a current work registration form; or
 - c. Was certified in the correct project area.
- 2. Cases in which the claim is two hundred dollars (\$200) or less will not be referred to investigations (unless referred by Quality Control) based on TDHS claims plan.

E. Calculating the Amount of a Claim

1. The amount of a claim for an over issuance shall be equal to the difference between the allotment the HH received and the allotment the HH should have received for each month of over issuance.
2. Once the amount of a claim is established, the claim must be offset against any amount of lost benefits that have not yet been restored to the HH.
3. Inadvertent HH and administrative error claims shall be calculated based on the amount of over issuance which occurred during the twelve (12) months preceding the date the over issuance was discovered.
4. IPV claims shall be calculated back to the month the act of intentional program violation occurred, but no more than six (6) years prior to discovery, providing case record and issuance information are available. No claim shall be calculated for any month prior to March 1, 1979.
5. In cases involving reported (or unreported) changes, the county shall determine the month the over issuance initially occurred as outlined below:
 - a. If the HH inadvertently or intentionally failed to report a change in its circumstances within the required time-frame, the first (1st) month of over issuance shall be the first (1st) month in which the change would have been effective had it been timely reported.
 - b. If the HH reported a change timely, but the county did not act on the change within the required time-frame, the first (1st) month affected by the county's failure to act shall be the first (1st) month the county would have made the change effective had it acted timely.
 - c. In no event shall the county determine as the first (1st) month in which the change would have been effective any month later than two (2) months from the month in which the change in HH circumstances occurred.
6. When a HH has failed to report earned income in a timely manner, no earned income deduction, shall be allowed in determining the amount of over issuance that has occurred.

F. Intentional Program Violations

1. For the purpose of determining through Administrative Disqualification Hearings (ADH) whether or not a person has committed an IPV:
 - a. The A/R intentionally:
 - i. made a false or misleading statement; misrepresented, concealed or withheld facts, or
 - ii. traded SNAP benefits for cash, or
 - iii. committed any act that constitutes a violation of the SNAP Act, the SNAP Program Regulations, or any state statute relating to the use, presentation, transfer, acquisition, receipt, or possession of SNAP benefits.
 - b. The A/R is found by a Federal, State or local court to have used or received benefits in a transaction involving the sale of firearms, ammunition, explosives, or controlled substances, or

- c. The A/R is an individual convicted by a Federal, State or local court of having trafficked benefits for an aggregate amount of five hundred dollars (\$500) or more, or
- d. For further details on trafficking, see [Policy 2.01 Investigations Resulting from Supplemental Nutrition Assistance Program \(SNAP\) Trafficking Offenses](#).

2. Administrative Responsibility

- a. TDHS shall be responsible for investigating any case of alleged IPV, and ensuring that appropriate cases are acted upon either through ADHs or referral to a court of appropriate jurisdiction.
- b. Individuals accused of IPV may waive their rights to ADHs or sign [HS-3245 Disqualification Consent Agreement](#) or cases of pre-trial diversion.
- c. The requirements and procedures relating to ADHs, waiver of the hearing, and referrals for prosecution are outlined in the rules of the Administrative Procedures Division (Refer to 1240-5-1 Intentional Program Violations).

3. Disqualification Penalties for individuals who commit IPV.

The ADH official or a court of appropriate jurisdiction determines that a HH member has committed an IPV as defined above in the introduction to this section, or if the HH member signs a waiver of right to an ADH or a disqualification consent agreement, that individual shall be disqualified from participation in SNAP as follows:

- a. One (1) year for the first (1st) violation,
- b. Two (2) years for the second (2nd) violation, or for the first (1st) occasion of a finding by a Federal, State, or local court of the trading of coupons for a controlled substance as defined in 8 USC § 802.
- c. Permanently for the third (3rd) violation.
- d. Permanently if convicted of trafficking in SNAP benefits of five hundred dollars (\$500) or more, or for the second (2nd) occasion of a finding by a Federal, State or local court of the trading SNAP benefits for a controlled substance as defined in 8 USC § 802, or for the first occasion, based on a finding by a Federal, State or local court of the trading of firearms, ammunition, or explosives for coupons;
- e. Ten (10) years if found to have made a fraudulent statement or representation with respect to identity and residence in order to receive multiple benefits simultaneously, or
- f. The length of time specified by a court of appropriate jurisdiction. If the court fails to impose a disqualification period, TDHS shall impose the disqualification penalties in above, unless the penalties are contrary to the court order.
- g. One (1) or more IPV, which occurred prior to April 1983, shall be considered as only one (1) previous violation when determining the appropriate penalty to impose.
- h. The disqualification shall apply only to the individual who is found to have committed the IPV, or who signed a waiver to the ADH, or who signed a disqualification consent agreement. It does not apply to the entire HH.

- i. Once a HH member is disqualified for an IPV, TDHS shall impose allotment reduction as the means of restitution.
- j. TDHS shall inform the HH in writing of the disqualification penalties for IPV each time it applies for program benefits.

4. Imposition of Disqualification Penalties

- a. The disqualification penalties outlined in section F.3. above shall apply only to individuals disqualified for acts of IPV which occurred either during a certification period based on an application containing these penalties or after receipt of written notification from TDHS of these penalties.
- b. If the act of IPV, which led to the disqualification, occurred prior to written notification of these disqualification penalties, the HH member shall be disqualified in accordance with the disqualification periods in effect at the time of the rendering of such determination. However, no disqualification penalty may be imposed which is contrary to court order.
- c. Appropriate disqualification penalties as outlined in section F.3 above shall be imposed (unless contrary to court order) on HH members in the following instances:
 - i. An ADH official rules that the HH member has committed an IPV. The disqualification period shall begin no later than the second (2nd) month following written notice of the disqualification by the Division of Appeals and Hearings.
 - ii. The HH member suspected of IPV signs [HS-3247 Waiver of Administrative Disqualification Hearing](#), and the signed waiver is received within the timeframe specified by TDHS. The disqualification period shall begin with the first (1st) month following the date the individual receives the written notification from the Division of Appeals and Hearings.
 - iii. A court of appropriate jurisdiction finds the HH member guilty of IPV. In such cases, TDHS shall disqualify the individual for the length of time imposed within forty-five (45) days of the date the disqualification was ordered by the court. If the court fails to impose a disqualification period, TDHS shall impose a disqualification period in accordance with section F.3 above. If the court does not specify a date for initiating the disqualification period, TDHS shall initiate the disqualification period within forty-five (45) days of the court order.
 - iv. The HH member suspected of IPV signs [HS-3245 Disqualification Consent Agreement](#) in cases of pre-trial diversion. The period of disqualification shall begin within forty-five (45) days of signing the disqualification consent agreement.
 - v. Once a disqualification penalty has been imposed against an individual, the period of disqualification shall continue uninterrupted until completed regardless of eligibility of the disqualified member's HH. The disqualified member's HH shall continue to be responsible for repayment of the over issuance, which resulted from the disqualified member's IPV, regardless of its eligibility for benefits.

5. For further details, see [Policy 2.00 Suspected Intentional Program Violations and Intentional Program Violations](#).

G. Administrative Disqualification Hearing

TDHS shall conduct administrative disqualification hearings for individuals accused of IPV in accordance with the requirements and procedures outlined in Section 1240-5-14-.04 of the Administrative Procedures rules.

H. Waived Administrative Disqualification Hearing

An individual is allowed to waive his/ her right to an administrative disqualification hearing (ADH) in accordance with the requirements and procedures outlined in Section 1240-5-14-.05 of the Administrative Procedures rules. Staff shall refer to [HS-3247 Waiver of Administrative Disqualification Hearing](#).

I. Court Referrals

TDHS shall refer appropriate cases of alleged IPV for prosecution by a court of appropriate jurisdiction in accordance with the procedures and requirements outlined in Section 1240-5-14-.06 of the Administrative Procedures rules.

J. Pre-Trial Diversion

Individuals referred for prosecution for IPV may be allowed to sign [HS-3245 Disqualification Consent Agreement](#).

K. Collecting Claims against Households

1. Criteria for Initiating Collection Action

For inadvertent HH and administrative error claims, TDHS will initiate collection action against the HH on all inadvertent HH or administrative error claims unless the claim is collected through offset or one of the following conditions applies:

- a. The total amount of the claim is less than thirty-five dollars (\$35), and the claim cannot be recovered through a SNAP benefit allotment reduction. Collection action on these claims will be initiated at times when multiple claims of under thirty-five dollars (\$35) total thirty-five dollars (\$35) or more.
- b. TDHS has documentation which shows that the HH cannot be located.
- c. An inadvertent HH error claim is being referred for possible prosecution or for administrative disqualification, and TDHS determines that collection action will prejudice the case. In these instances, collection action may be postponed.

2. Intentional Program Violation Claims

If a HH member is found to have committed an IPV (by an ADH official or a court of appropriate jurisdiction) or has signed a waiver of right to an ADH, or a disqualification consent agreement, TDHS shall initiate collection action against the individual/household, unless one of the following conditions applies:

- a. The HH has repaid the over issuance already,

- b. TDHS has documentation which shows the HH cannot be located,
- c. TDHS determines that collection action will prejudice the case against a HH member who has been referred for prosecution.

3. Initiating Collection on Claims

TDHS shall initiate collection action by providing the HH a written demand letter containing the following information:

- a. The amount owed by the HH,
- b. The reason for the claim,
- c. The period of time the claim covers,
- d. Any offsetting that was done to reduce the claim,
- e. How the HH may pay the claim,
- f. The HH's right to a fair hearing if the HH disagrees with the amount of the claim, unless the HH has already had a fair hearing on the amount of the claim as a result of consolidation of the ADH with the fair hearing, and
- g. Information regarding free legal representation, if there is an individual or organization available that provides free legal representation.

4. Action against Households Which Fail to Respond to Collection Action

- a. If the HH against which collection action has been initiated for repayment of any claim regardless of class is currently participating in the program and does not respond to the written demand letter within thirty (30) days of the date the notice is mailed for the claim, TDHS will reduce the HH's SNAP allotment after adverse notification is received.
- b. TDHS sends an initial demand letter on a claim. The individual may request a fair hearing within the first ninety (90) days after receipt of the initial demand letter.
- c. TDHS may also pursue other collection actions, as appropriate, to obtain restitution of a claim against any HH which fails to respond to a written demand letter for repayment of any inadvertent HH error, administrative error, or IPV claim.

5. Suspending Collection of Claims

a. Inadvertent Household and Administrative Error Claims

An inadvertent HH or administrative error claim may be suspended if no collection action was initiated because the claim is less than thirty-five dollars (\$35) and cannot be recovered through allotment reduction, HH cannot be located, or the claim is being referred for prosecution or for ADH. Collection action of an inadvertent HH error claim against a nonparticipating HH or of any administrative error claim may be suspended when:

- i. The HH cannot be located; or

- ii. The cost of further collection action is likely to exceed the amount that can be recovered.

b. Intentional Program Violation Claims

TDHS may suspend collection action on IPV claims when:

- i. TDHS has documentation that the HH cannot be located, or
- ii. For nonparticipating HHs TDHS has sent at least one (1) demand letter for claims under one hundred dollars (\$100); at least two (2) demand letters for claims between one hundred dollars (\$100) and four hundred dollars (\$400); and the cost of further collection action is likely to exceed the amount that can be recovered.

6. Terminating Collection of Claims

A claim may be determined uncollectible after it is held in suspense for three (3) years. TDHS may use a suspended or terminated claim to offset benefits.

7. Collection Action When the Household Composition Changes

When the membership of a HH with an over issuance claim changes, collection action will be initiated as follows:

a. Inadvertent Household and Administrative Error Claims

- i. TDHS shall initiate collection from the HH containing the head of the HH at the time the over issuance occurred.
- ii. If repayment cannot be obtained from such a HH, TDHS shall initiate collection from any HH containing an adult who was a member of the HH in which the over issuance occurred.

b. TDHS may grant a HH relief in repayment of their claim(s) dependent on the HH's economic capability to repay the claim within three (3) to five (5) years if the HH is inactive on benefits and the claim is not certified on the Treasury Offset Program.

- i. Language has been added to the request for repayment letter that the HH may request consideration to waive or reduce the repayment on their claim.
- ii. The notice of the right to request a waiver is printed on each claim notice.

8. Intentional Program Violation Claims

- a. TDHS shall initiate collection action against the HH which committed an IPV and received the over issuance for which the claim was established.
- b. If repayment cannot be obtained from the person who committed the IPV, TDHS shall initiate collection action against the HH containing the individual who was head of the HH at the time the act(s) of IPV occurred.
- c. If repayment cannot be obtained from such HH, TDHS shall initiate collection against any HH containing an adult who was a member of the HH in which the over issuance occurred.

d. IPV claims are not compromised at all and cannot be negotiated.

9. Staff shall refer to Methods of Collecting Payments for a Claim on the different methods used to collect payments for claims.

For HHs subject to allotment reduction, the amount of SNAP to be recovered each month through allotment reduction shall be determined as follows:

- a. Administrative Error and Inadvertent HH Error Claims. For these claims, the amount of SNAP shall be the greater of ten (10%) percent of the HH's monthly allotment or ten dollars (\$10) per month.
- b. For IPV claims, the amount of SNAP shall be the greater of twenty (20%) percent of the HH's monthly entitlement or twenty dollars (\$20) per month.

10. Overpaid Claims

If a HH has overpaid a claim, TDHS shall pay the HH any amounts overpaid as soon as possible after the overpayment becomes known.

11. Interstate Claims Collection

- a. When a HH moves to another state, TDHS shall initiate or continue collection action against the HH for any over issuance to the HH which occurred while it was under TDHS jurisdiction.
- b. If repayment cannot be obtained from the person who committed the IPV, TDHS shall initiate collection action against the HH containing the individual who was head of the HH at the time the act(s) of IPV occurred.
- c. If repayment cannot be obtained from such HH, TDHS shall initiate collection against any HH containing an adult who was a member of the HH in which the over issuance occurred.
- d. IPV claims are not compromised at all and cannot be negotiated.

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- b. For IPV claims, the amount of SNAP shall be the greater of twenty (20%) percent of the HH's monthly entitlement or twenty dollars (\$20) per month.

13. Overpaid Claims

If a HH has overpaid a claim, TDHS shall pay the HH any amounts overpaid as soon as possible after the overpayment becomes known.

14. Interstate Claims Collection

When a HH moves to another state, TDHS shall initiate or continue collection action against the HH for any over issuance to the HH which occurred while it was under TDHS jurisdiction.

L. Restoration of Lost Benefits**1. Restored Benefits**

- a. The county office shall restore to the HH benefits which were lost when the loss was caused by an administrative error; or
- b. when an administrative disqualification decision for IPV is subsequently reversed; or
- c. when federal regulations specifically state that a HH is entitled to restoration of lost benefits.
- d. Benefits shall be restored for not more than twelve (12) months prior to whichever of the following occurred first:
- e. The date TDHS receives a request for restoration from a HH; or
- f. The date TDHS is notified or otherwise discovers that a loss to a HH has occurred.

2. Judicial Action

- a. The county office shall restore to a HH benefits, which were found by any judicial action to have been wrongfully withheld.
- b. If the judicial action is the first action the recipient has taken to obtain restoration of lost benefits, then benefits shall be restored for a period of not more than twelve months from the date the court action was initiated.
- c. When the judicial action is a review of a county office action, the benefits shall be restored for a period of not more than twelve (12) months from the first of the following dates:
- d. The date TDHS receives a request for restoration; or
- e. If no request for restoration is received, the date the fair hearing action was initiated; but
- f. Never more than one year from when TDHS is notified of, or discovers the loss.

3. Errors Discovered by the County Office

- a. If the county office determines that a loss of benefits has occurred, and the HH is entitled to restoration of those benefits, the county office shall automatically take action to restore any benefits that were lost. No action by the HH is necessary.
- b. However, benefits shall not be restored:
- c. If the benefits were lost more than twelve (12) months prior to the month the loss was discovered by the county office in the normal course of business; or
- d. Benefits were lost more than twelve (12) months prior to the month the county office was notified in writing or orally of a possible loss to a specific HH.
- e. Errors due to application/certification processing due to TDHS fault (i.e., certifications delayed for more than one (1) year), the restoration of benefits is limited to a period of

not more than twelve (12) months prior to the date on which TDHS is notified, or otherwise discovers that a loss to a HH has occurred.

4. Notification of Method of Restoration

When the county office determines that a loss of benefits has occurred, the HH shall be notified, in writing, of the following:

- a. entitlement to restored benefits;
- b. the amount of benefits to be restored;
- c. any offsetting that was done;
- d. the method of restoration; and
- e. the right to appeal through the fair hearing process if the household disagrees with any aspect of the proposed lost benefit restoration.

5. Method of Restoration

- a. Regardless of whether a HH is currently eligible or ineligible, the county office shall restore lost benefits to a HH by issuing an allotment equal to the amount of benefits that were lost.
- b. The amount restored shall be issued in addition to the allotment currently eligible HHs are entitled to receive.

6. Deviations

The county office shall honor reasonable requests by HHs to restore lost benefits in monthly installments if, for example, the HH fears that the amount to be restored is more than it can use in a reasonable period of time.

7. Household Composition Changes

- a. Whenever lost benefits are due to a HH and the HH's membership has changed, the county office shall restore the lost benefits to the HH containing a majority of the individuals who were HH members at the time the loss occurred.
- b. If the county office cannot locate or determine the HH which contains a majority of the HH members, the county office shall restore the lost benefits to the HH containing the individual who was head of the HH at the time the loss occurred.

8. Computing the Amount to be Restored

After correcting the loss for future months and excluding those months for which benefits may have been lost prior to the twelve (12) month time limits, staff shall refer to Computing the Amount of Restoration to determine the amount of SNAP benefits to be restored.

9. Offsetting Claims

- a. If a claim against a HH is unpaid or held in suspense, the amount to be restored shall be offset against the amount due on the claim before the balance, if any, is restored to the HH.

- b. At that point in time when the HH is certified and received an initial allotment, the initial allotment shall not be reduced to offset claims, even if the initial allotment is paid retroactively.

10. Disputed Benefits

- a. Household disagrees with TDHS
 - i. If the county office determines that a HH is entitled to restoration of lost benefits, but the HH does not agree with the amount to be restored as calculated by the county office or any other action taken by the county to restore lost benefits, the HH may request a fair hearing within ninety (90) days of the date the HH is notified of its entitlement to restoration of lost benefits.
 - ii. If a fair hearing is requested prior to or during the time lost benefits are being restored, the HH shall receive the lost benefits as determined by the county office, pending the results of the fair hearing.
 - iii. If the fair hearing decision is favorable to the HH, the county shall restore lost benefits in accordance with that decision.
- b. TDHS disagrees with Household
 - i. If a HH believes it is entitled to restoration of lost benefits but the county office, after reviewing the case file, does not agree, the HH has ninety (90) days from the date of the county office's determination to request a fair hearing.
 - ii. The county office shall restore lost benefits to the HH only if the fair hearing decision is favorable to the HH.
 - iii. Benefits lost more than twelve (12) months prior to the date the county office was initially informed of the HH's possible entitlement to lost benefits shall not be restored.

11. Entitlement to Lost Benefits for Individuals Who Were Disqualified for Intentional Program Violation

- a. Individuals disqualified for IPV are entitled to restoration of any benefits lost during the months they were disqualified only if the disqualification decision is subsequently reversed.
- b. The months covered in the restoration must not exceed twelve (12) months prior to the date the county received notification.
- c. For each month the individual was disqualified, the amount to be restored, if any, shall be determined by comparing the allotment the HH received with the allotment the HH would have received had the disqualified member been allowed to participate.
- d. If the HH received a smaller allotment than it should have received, the difference equals the amount that should have been restored.
- e. Participation in an ADH in which the HH contests TDHS assertion of IPV shall be considered notification that the HH is requesting restored benefits.

12. Claims Against a Deceased Individual

Collection stops when there are no other adult individuals to pursue unless the State decides to pursue collection of the debt against the estate of the deceased individual through Chancery Court.

Supporting Documents

[HS-3245 Disqualification Consent Agreement \(Instructions\)](#)

[HS-3247 Waiver of Administrative Disqualification Hearing \(Instructions\)](#)

[HS-3247 Waiver of Administrative Disqualification Hearing \(Spanish\)](#)

[Documenting Addresses in ACCENT and Returned Mail](#)

[Policy 24.01 SNAP General Administrative Procedures](#)

[SNAP Policy Manual, August 2017](#)

[Policy 24.04 SNAP Household Composition](#)

[Policy 24.05 SNAP Authorized Representatives](#)

[Policy 2.00 Suspected Intentional Program Violations and Intentional Program Violations](#)

[Policy 2.01 Investigations Resulting from Supplemental Nutrition Assistance Program \(SNAP\) Trafficking Offenses](#)

[Policy 2.02 Tennessee Department of Human Services \(DHS\) Investigations Unit's Claims Processing Procedures](#)

Methods of Collecting Payments for a Claim

Computing the Amount of Restoration

[HS-0169 Application for Assistance \(English\) \(Instructions\)](#)

[HS-0169 Application for Assistance \(Arabic\) \(Instructions\)](#)

[HS-0169 Application for Assistance \(Somali\) \(Instructions\)](#)

[HS-0169sp Application for Assistance \(Spanish\) \(Instructions\)](#)

Definitions/Acronyms

Term	Definition
ADH	Administrative Disqualification Hearing
A/R	Applicant/Recipient
Auth Rep	Authorized Representative
EBT	Electronic Benefit Transfer
HH	Household
IPV	Intentional Program Violation
PIN	Personal Identification Number
QC	Quality Control
TDHS	Tennessee Department of Human Services

Supersedes

SNAP Policy Manual, April 2016, Chapters 40 and 42; Bulletin No. 45, FA-06-32; Bulletin No. 34, FA-08-252

Authority

7 C.F.R. §§ 273.16, 273.17, 273.18

Tenn. Code Ann. § 71-5-314

Tenn. Comp. R. & Regs. 1240-1-18-.04,.05, 1240-1-20-.01--.09

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
08/05/2019	08/15/2019	N/A	New Document

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Danielle Barnes	Commissioner	08/05/2019	08/15/2019

Current Approver